

Rivendra Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench (Chief Justice's Court) · 4 July 2023 · 2023:AHC:131566-DB · Writ - C No. 21095 of 2023 · **Writ dismissed as withdrawn with liberty to approach the Executive Engineer under clause 6.5.**

HEADNOTE

Sudden bill of Rs. 94,977 for May 2023 against a usual Rs. 300–400. Counsel conceded the remedy before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. Writ dismissed as withdrawn with liberty to approach that authority, which must act strictly in accordance with law. Coercive action on the impugned notice stayed for one month.

FACTUAL SUMMARY

Rivendra Singh's electricity bill for May 2023 was raised at Rs. 94,977 by the Electricity Department, though his earlier monthly bills had been about Rs. 300 to 400. He filed a writ petition against the State of U.P. and two others. His counsel accepted that he could take the grievance to the Executive Engineer, respondent no. 2, under section 6.5 of the U.P. Electricity Supply Code, 2005, and sought leave to withdraw the petition to pursue that remedy. The department's counsel did not object.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Bill grievance before the Executive Engineer

HOLDING

On the petitioner's concession that clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a remedy before the Executive Engineer against the May 2023 bill, the writ is dismissed as withdrawn with liberty to approach that authority. If approached, the authority must act strictly in accordance with law. Coercive action pursuant to the impugned notice is barred for one month. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-6.5 Counsel conceded clause 6.5 before the Executive Engineer for the sudden May 2023 bill and withdrew the writ; the authority, if approached, must act strictly in accordance with law, and coercive action is stayed for one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MAY 2023 BILL OF RS. 94,977 IS CORRECT OR LIABLE TO BE REVISED.

The writ was withdrawn without a finding on the bill. The Executive Engineer is to act in accordance with law if approached. ¶ 1